



Palmetto Coordinated System of Care Waiver Corrective Action Plan Guidance

“In accordance with 42 CFR §431.10, the Medicaid agency is responsible for ensuring that a waiver is operated in accordance with applicable federal regulations and the provisions of the waiver itself.”

“The requirement that the Medicaid agency maintain its authority over the waiver means that any rules, regulations and policies that govern how the waiver is operated must be issued by the Medicaid agency rather than by the operating agency. In issuing rules, regulations and policies that affect the waiver, the Medicaid agency may incorporate by reference rules, regulations and policies that have been adopted by the operating agency (or another state agency – e.g., rules and regulations concerning provider qualifications). In short, the operating agency may not independently promulgate rules, regulations and policies that have a material effect on the provision of waiver services and how waiver processes are conducted. Policies and other types of guidance concerning waiver operations may be issued jointly by the Medicaid agency and the operating agency. Alternatively, the Medicaid agency may formally approve policies and guidance developed and issued by the operating agency.”

Instructions, Technical Guide and Review Criteria

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Per the CMS-approved waiver, SCDHHS as the waiver administrator communicates identified issues to the responsible party.

“When issues are discovered by SCDHHS through formal quality review processes the responsible party is notified by SCDHHS staff. SCDHHS staff identifies the problem, makes the responsible party aware of the problem and ensures that they have appropriate information to correct the problem. SCDHHS staff formally issue a statement of deficiency requiring a corrective action plan (CAP). If SCDHHS deems the problem/issue/concern to cause imminent danger to the waiver operations or youth, SCDHHS notifies the responsible party and they are restricted from conducting waiver related supports and services until the issue is resolved and SCDHHS accepts the CAP. The CAP response must be submitted within 30 days of the receipt of the CAP by the responsibility party. The corrective action plan both addresses immediate problems and identifies how the problems can be avoided in the future. Documentation is submitted to SCDHHS to support corrective actions as proof that the issue has been addressed. SCDHHS reviews corrective action plans to ensure that they address the underlying issues/concerns. SCDHHS reviews past quality review findings at future reviews to ensure that the issues have not continued. Failure to submit and implement a corrective action plan may result in the provider being excluded from the waiver.”

CMS-approved waiver SC.1686.R00.02

Methods for Remediation/Fixing Individual Problems

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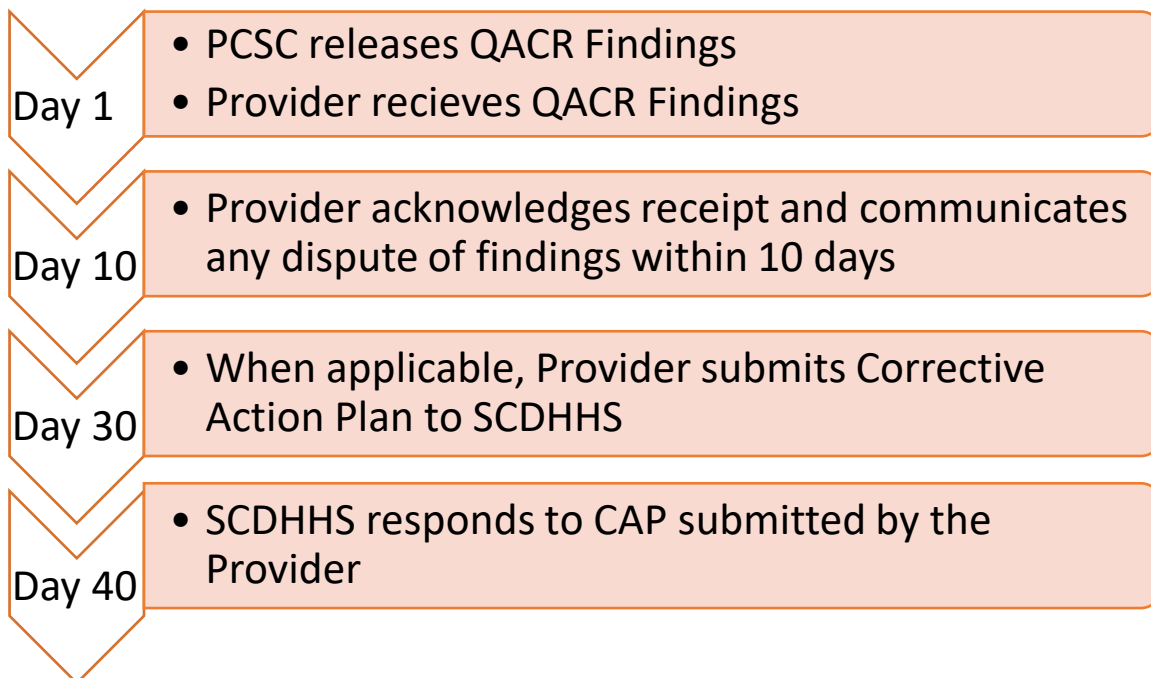
The work and programs of the Palmetto Coordinated System of Care are guided by the following Core Values: family driven and youth guided; home and community based; strengths based and individualized; culturally and linguistically competent; coordinated across systems and services; connected to natural helping networks; data driven and outcome oriented; and trauma-informed. Visit <https://scdhhs.gov/pcsc> to learn more about the Palmetto Coordinated System of Care.



Palmetto Coordinated System of Care Waiver Corrective Action Plan Procedures

SCDHHS conducts random quality assurance Palmetto Coordinated System of Care waiver participant record reviews in preparation for the annual 100% performance measure reviews required to meet waiver standards outlined by CMS. The review process promotes compliance with state policies/procedures, federal regulations, and federal assurances. Training materials and corrective action plans may be developed, and other measures may be taken to support providers in attaining service standards outlined in the waiver application, policy manual or other binding agreements.

At the completion of each review cycle, the waiver provider will receive a report of findings. This report will provide the results of the review, recommended corrective actions, and other measures to address identified deficiencies. Providers are required to acknowledge receipt of the findings and communicate disputes within **ten (10) calendar days of receipt**. When deficiencies are identified in the quality assurance compliance review (QACR), a corrective action plan (CAP) must be submitted to SCDHHS within **thirty (30) calendar days of receipt**. SCDHHS will provide feedback on CAPs within 10 calendar days. Lastly, some deficiencies may result in time-limited sanctions, recoupment, or other recommended actions. When a time-limited sanction is imposed, your agency will undergo a second QACR to ensure correction of the deficiency. As with the initial QACR, disputes from your agency must be received within **ten (10) calendar days of receipt** of an associated QACR.



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